

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tiffany Brown	Team: Team # 8	CCRB Case #: 200502213	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 02/27/2005 4:10 AM	Location of Incident: § 87(2)(b)	Precinct: 47	18 Mo. SOL 8/27/2006	EO SOL 8/27/2006	
Date/Time CV Reported Tue, 03/01/2005 3:43 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/01/2005 3:43 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Shawn Kennon	23720	924818	047 PCT
2. POM Michael McHugh	09788	925715	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Michael McHugh	Abuse: PO Michael McHugh entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
B.POM Shawn Kennon	Abuse: PO Shawn Kennon entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
C.POM Shawn Kennon	Off. Language: PO Shawn Kennon made remarks to § 87(2)(b) based upon race.	§ 87(2)(b)

Synopsis

The complainant, § 87(2)(b) owns § 87(2)(b) located at § 87(2)(b) Bronx, NY. On February 27, 2005, PO Shawn Kennon and PO Michael McHugh entered § 87(2)(b) and requested documentation from § 87(2)(b) pertaining to her establishment (Allegations A and B). When § 87(2)(b) asked PO Kennon why he was harassing her, he told her that he was targeting several establishments in the area and her club was “number one” on his list. He further stated to her that he wanted her establishment closed because she is a Black female (Allegation C).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) Black female with black hair and brown eyes § 87(2)(b). On February 27, 2005 at approximately 4:15 am, her club was closing for the night. § 87(2)(b) was downstairs in the club when someone told her that police officers were outside of the club and were asking for the owner. § 87(2)(b) went upstairs and spoke to PO Kennon, a Black male, 5’5” tall, 170lbs. with black hair, and black eyes, who told her that the music from the club was too loud and that he could hear it from 3 blocks away. § 87(2)(b) asked why PO Kennon would come when the party was over even though the music had been playing all night. She asked PO Kennon if he would step outside because she believed that her patrons would start to panic seeing police officers in the club. She started to walk outside because patrons of the club were panicking but PO Kennon grabbed her arm and told her to stay where she was. § 87(2)(b) and PO Kennon started arguing. PO Kennon eventually went outside and § 87(2)(b) followed and asked why he was harassing her. PO Kennon told her that there are twenty clubs in the area, five of which he is targeting. He also told her that her club was number one on his list because she was Black and a female. § 87(2)(b) s friend was the only other person around but may not have heard anything.

Results of Investigation

Officer Interviews

PO McHugh

Summonses

On February 27, 2005, PO McHugh issued § 87(2)(b) summons § 87(2)(b) § 87(2)(a) 160.50 § 87(2)(b), summons § 87(2)(b) § 87(2)(a) 160.50, and a third summons for which there is no public record.

PO Kennon and PO McHugh

PO Shawn Kennon is a male Black 5’8” tall and weighs 185lbs. He has black hair and brown eyes. PO Kennon was interviewed at the CCRB on April 28, 2005. PO Michael McHugh is a male White 6’3” tall and weighs 225lbs. He has red hair and blue eyes. PO McHugh was interviewed at the CCRB on May 4, 2005 § 87(2)(g).

PO Kennon stated that on February 27, 2005, he either received a 311 call or was just driving by and noticed a crowd outside of § 87(2)(b) s club, § 87(2)(b) at § 87(2)(b). However, PO McHugh stated that the officers decided to conduct a bar inspection because they observed cars double-parked in front of the club and also noticed that the music from the club was very loud. PO Kennon went inside of the club and conducted a bar inspection. PO Kennon asked § 87(2)(b) for her ID, liquor license, cabaret license and Certificate of Occupancy. She did not have a Certificate of Occupancy or a cabaret license, but she provided all other documents to PO Kennon. After retrieving her documents, PO Kennon told § 87(2)(b) to “stand by” and he would be back. Upset, § 87(2)(b) pointed at PO Kennon and cursed. She told him that he was being unfair to her and that he was picking on her purposely.

to harm her. § 87(2)(b) never told PO Kennon to step outside. PO Kennon stepped outside to return to the RMP in order to run a warrant check.

§ 87(2)(b) came out of the club when the officers were almost done with the warrant check. PO McHugh issued § 87(2)(b) summonses § 87(2)(a) 160.50 § 87(2)(b). PO Kennon handed the summonses to § 87(2)(b) and stated that if § 87(2)(b) did not follow the rules and regulations for maintaining a club and if she continued to disregard the ordinances then her club would most likely be shut down. § 87(2)(b) started to curse and scream stating that PO Kennon was picking on her, was always there, and was harassing her. When she asked PO Kennon why he was harassing her, he told § 87(2)(b) that he “had” over 30 clubs and he is not particularly harassing her but there were approximately 10 clubs coming into violation over and over again. She continued cursing. PO Kennon never told her that her club was number one on his list. He never told § 87(2)(b) that he wanted to close her down because she was Black and a female. There was no one else with § 87(2)(b) when he was speaking to her and her behavior did not draw a crowd. PO Kennon was calm and direct during the entire incident with § 87(2)(b). He never cursed at her. PO McHugh did not speak to § 87(2)(b) while he and PO Kennon were in the car.

Police Documents

Disposition of summonses

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Roll Call

The 47th Precinct roll call for February 27, 2005 indicated that PO Kennon and PO McHugh were partners assigned to the conditions unit.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Substantiated CCRB allegations which resulted in the imposition of discipline

PO Kennon has never had a CCRB allegation substantiated. In case 200301006, PO McHugh had an abuse of authority allegation substantiated and he received instructions.

Conclusions and Recommendations

Officer Identification

PO Kennon issued several summonses to § 87(2)(b) on several unknown dates. § 87(2)(b) is familiar with PO Kennon and provided his name in her complaint. PO Kennon acknowledged that he has interacted with § 87(2)(b) numerous times. PO Kennon identified PO McHugh as his partner and both officers acknowledged their roles during the incident.

Undisputed Facts

On February 27, 2005, PO Kennon and PO McHugh conducted a bar inspection at § 87(2)(b). PO Kennon informed § 87(2)(b) that there were several clubs in the area that were constantly in violation. PO McHugh issued three summonses to § 87(2)(b) § 87(2)(a) 160.50.

Disputed Facts

§ 87(2)(g)

Credibility

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) admitted that she did not have a cabaret license or Certificate of Occupancy when the officers requested it.

PO Kennon

§ 87(2)(g)

PO McHugh

§ 87(2)(g)

Determination of Facts

This investigation has determined that on February 27, 2005, PO Kennon and PO McHugh conducted a bar inspection at § 87(2)(b). They asked § 87(2)(b) for her liquor license, cabaret license and her Certificate of Occupancy. § 87(2)(a) 160.50

Allegation A: PO Michael McHugh questioned § 87(2)(b)

Allegation B: PO Shawn Kennon questioned § 87(2)(b)

According to Kamins' Search and Seizure, "New York courts have usually held that a police officer may enter commercial premises during regular business hours: he has the same right as any other citizen to enter and make observations. This rule applies to legitimate businesses, social clubs open to the public and seemingly legitimate businesses which are a front for illegal operations. A police officer has a right to enter premises where the public is permitted entry despite the appearance that no business is being conducted within." § 87(2)(g)

Allegation C: PO Shawn Kennon made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that PO Kennon told her that he was trying to have her club closed because § 87(2)(b) is a Black female. PO Kennon denied making any remarks regarding § 87(2)(b)'s race. PO McHugh also denied that PO Kennon made any remarks about § 87(2)(b)'s race. According to § 87(2)(b), PO Kennon and PO McHugh, there were no witnesses around in the close proximity of the officers and § 87(2)(b) § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: